

SOLVED PRACTICE WORKBOOK

Preamble of the Constitution - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Preamble of the Constitution REFRESHED: TEACHING NAVIGATION — BASICS/CORE FIRST	
01 WHAT A PREAMBLE IS, AND WHAT KIND OF INSTRUMENT INDIA'S PREAMBLE IS A preamble is the Constitution's introductory declaration: it identifies	02 FROM THE OBJECTIVES RESOLUTION TO THE PREAMBLE: THE DRAFTING CHAIN India's Preamble is the Objectives Resolution in modified
03 THE AUTHORITATIVE TEXT AND ITS CLAUSE ARCHITECTURE The objectives clause ("to secure to all its citizens") is subordinate to	04 INGREDIENT 1 - THE SOURCE OF AUTHORITY: "WE, THE PEOPLE OF INDIA" Technically, Ingredient 1 - "The Source Of Authority" "We, The People"
05 INGREDIENT 2 - THE NATURE OF THE INDIAN STATE: THE SIX DESCRIPTORS The single most valuable habit on this topic is the keyword-to-anchor	06 SOVEREIGN Technically, Sovereign is analyzed by relating CONTENT
07 SOCIALIST The word was inserted by the 42nd Amendment, 1976; before that,	08 SECULAR "Secular" was inserted by the 42nd Amendment, 1976.
09 DEMOCRATIC "Democratic" is the word that carries the most Mains weight, because	10 REPUBLIC A neat comparative sentence pays here: Britain is democratic but not
11 INGREDIENT 3 - THE OBJECTIVES: JUSTICE A combination of social justice and economic justice denotes what is	12 LIBERTY AND EQUALITY Second, status and opportunity, not outcome - the Preamble does not
13 FRATERNITY, DIGNITY OF THE INDIVIDUAL, AND UNITY AND INTEGRITY OF THE NATION Distinguish unity from integrity clearly, because the pair is a favourite	14 INGREDIENT 4 - THE DATE OF ADOPTION, AND THE ENACTMENT SEQUENCE The Constitution came into force on 26 January 1950, chosen to
15 SIGNIFICANCE: WHAT THE MAKERS AND THE SCHOLARS SAID THE PREAMBLE DOES Hidayatullah, a former Chief Justice of India, said the Preamble	16 LEGAL STATUS: BERUBARI TO KESAVANANDA TO LIC OF INDIA Berubari Union case (1960): on a Presidential reference under Article
17 THE TWO PERMANENT CAVEATS, OPERATIONALISED In a 15- or 20-marker, the caveats must be followed by the positive	18 AMENDABILITY AND THE BASIC-STRUCTURE BOUNDARY The question whether the Preamble can be amended under Article
19 HOW THE PREAMBLE ACTUALLY BITES: THE INTERPRETIVE-FORCE MECHANISM A third, softer route even in practice: the Preamble supplies the	20 EXAM ARCHITECTURE: CONVERTING THE PREAMBLE INTO MARKS In every Mains answer on this topic, one sentence must record that

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Preamble of the Constitution - Learner-v2 Source-Complete Learning Session

BASIC MCQS / REMEDIATION

Practice rule and exact option rotation

The 48 questions form one continuous sequence. Correct answers rotate exactly A -> B -> C -> D twelve times, without repetition or reset.

40 core diagnostic MCQs

Prelims trap grid: the wrong sentence and the correct sentence

Each row is a real elimination that decides a four-option question.

WRONG - the tempting option		CORRECT - the examinable position
The Preamble has been part of the Constitution since 1950.	→	Berubari (1960) said NOT a part; Kesavananda (1973) reversed it.
The Preamble has the same legal effect as any other part.	→	It has no legal effect independently of the other parts.
The Preamble cannot be amended.	→	It can be amended under Art 368, but not its basic features.
The Preamble has been amended several times.	→	Amended only once - 42nd Amendment, 1976.
On 26 January 1950 India was a Sovereign Socialist Secular Democratic Republic.	→	It was a Sovereign Democratic Republic; the other two words came in 1976.
The ideal of justice comes from the French Revolution.	→	Justice comes from the Russian Revolution, 1917.
The Preamble declares the ideal of a welfare State.	→	The welfare-State ideal is declared by the Directive Principles.
The Preamble is a source of legislative power.	→	It is neither a source of power nor a prohibition on the legislature.

Prelims trap grid: the wrong sentence and the correct sentence

Each row is a real elimination that decides a four-option question - read this before attempting the loops.

Forty core questions cover every major subtopic in the Basic session. Attempt a full loop before checking any answer.

Core MCQ 1. Consider the following statements about the Objectives Resolution.

1. It was drafted and moved in the Constituent Assembly by Jawaharlal Nehru on 13 December 1946.
2. It was adopted by the Constituent Assembly on 22 January 1947.
3. The Preamble is the Objectives Resolution in a modified form.

Which of the statements given above are correct? (a) 1, 2 and 3 (b) 1 and 2 only (c) 2 and 3 only (d) 1 and 3 only

Answer: (a) 1, 2 and 3.

All three are accurate. Nehru moved the Resolution on 13 December 1946; the Assembly adopted it on 22 January 1947; and the Preamble is that Resolution in modified form rather than a fresh independent draft. The commonest error is to attach the adoption date to 1946 or to treat the Resolution as a surviving standalone provision.

Core MCQ 2. The Preamble was voted upon and enacted after the rest of the Constitution had been enacted. The principal constitutional reason was that

(a) the Drafting Committee had not completed the text of the Preamble in time (b) the Preamble had to conform to the Constitution as already adopted by the Assembly (c) the Preamble required a separate and higher majority than the other provisions (d) the Preamble had first to be approved by the provincial legislatures

Answer: (b) the Preamble had to conform to the Constitution as already adopted.

The Assembly deliberately reversed the natural order so that the Preamble would summarise what had actually been enacted, and the motion put was "The question is that Preamble stands part of the Constitution". Option (c) is wrong because no special majority applied. Option (d) is wrong because no provincial ratification was required. This fact is

what makes the Preamble reliable evidence of the makers' intention.

Core MCQ 3. Which one of the following most accurately states the holding of the *Berubari Union case* (1960) on the Preamble?

(a) The Preamble is a key to open the minds of the makers, but is not a part of the Constitution (b) The Preamble is an integral part of the Constitution and is enforceable (c) The Preamble is neither an aid to interpretation nor a part of the Constitution (d) The Preamble is a part of the Constitution but is not enforceable

Answer: (a).

Berubari accepted the Preamble as showing the general purposes behind the several provisions and as a key to open the minds of the makers, yet specifically opined that it is **not a part** of the Constitution. Option (c) overstates the case by denying the interpretive role, which *Berubari* itself affirmed. Options (b) and (d) describe later positions - *LIC* (1995) and *Kesavananda* (1973) respectively.

Core MCQ 4. The Preamble to the Constitution of India can most accurately be described as

(a) a part of the Constitution that has no legal effect independently of other parts (b) an enforceable declaration of rights available against the State (c) a source of legislative power that supplements the Seventh Schedule (d) a prohibition on the exercise of legislative power inconsistent with its values

Answer: (a).

The settled triad is that the Preamble is a part of the Constitution, is neither a source of power nor a prohibition upon the legislature, and is non-justiciable. Options (c) and (d) are ruled out by the first caveat and option (b) by the second. Only (a) is consistent with all three.

Core MCQ 5. Which of the following were inserted into the Preamble by the Constitution (Forty-second Amendment) Act, 1976?

1. Socialist
2. Secular
3. Integrity
4. Fraternity

Select the correct answer using the code given below. (a) 1, 2 and 3 only (b) 1 and 2 only (c) 2, 3 and 4 only (d) 1, 2, 3 and 4

Answer: (a) 1, 2 and 3 only.

The 42nd Amendment inserted exactly three words - Socialist, Secular and Integrity. Fraternity was in the original text, taken with Liberty and Equality from the French Revolution. Candidates frequently forget "Integrity" and choose (b); the word "unity" was original while "integrity" was added.

Core MCQ 6. What was the exact constitutional description of India in the Preamble as it stood on 26 January 1950?

(a) Sovereign Secular Democratic Republic (b) Democratic Republic (c) Sovereign Socialist Secular Democratic Republic (d) Sovereign Democratic Republic

Answer: (d).

On commencement the Preamble read "SOVEREIGN DEMOCRATIC REPUBLIC". Socialist and Secular arrived only in 1976, which eliminates (c) and (a). Option (b) is wrong because sovereignty is precisely what India acquired on that date, having been a dominion since 15 August 1947.

Core MCQ 7. Consider the following pairs of Preamble ideals and their acknowledged historical source.

1. Justice - Russian Revolution, 1917
2. Liberty - French Revolution, 1789
3. Equality - Russian Revolution, 1917
4. Fraternity - French Revolution, 1789

Which of the pairs given above are correctly matched? (a) 1 and 3 only (b) 2, 3 and 4 only (c) 1, 2 and 4 only (d) 1, 2, 3 and 4

Answer: (c) 1, 2 and 4 only.

Justice comes from the Russian Revolution of 1917; Liberty, Equality and Fraternity all come from the French Revolution. Pair 3 is therefore wrongly matched, which eliminates (a), (b) and (d). This split is one of the most reliably examinable facts in the topic.

Core MCQ 8. The Preamble secures to citizens liberty of which of the following?

1. Thought
2. Expression
3. Association
4. Belief, faith and worship

Select the correct answer using the code given below. (a) 1, 2, 3 and 4 (b) 2, 3 and 4 only (c) 1 and 3 only (d) 1, 2 and 4 only

Answer: (d) 1, 2 and 4 only.

The Preamble lists five liberties - thought, expression, belief, faith and worship. **Association** is not among them; freedom of association is an Article 19(1)(c) right. Any code including 3 is therefore wrong, which removes (a), (b) and (c).

Core MCQ 9. Consider the following statements regarding India's sovereignty.

1. India's membership of the Commonwealth rests on a declaration that is extra-constitutional and does not limit its sovereignty.
2. India's membership of the United Nations Organisation imposes treaty obligations but does not limit its sovereignty.

Which of the statements given above is/are correct? (a) Both 1 and 2 (b) 1 only (c) 2 only (d) Neither 1 nor 2

Answer: (a) Both 1 and 2.

The 1949 Commonwealth declaration is extra-constitutional and accepts the British monarch only as symbolic head of the free association. UN membership, from 1945, involves voluntarily assumed treaty obligations. Neither derogates from sovereignty, which is why both statements are correct.

Core MCQ 10. Cession of Indian territory to a foreign State, as the Berubari episode established, requires

(a) only an executive agreement ratified by the Council of Ministers (b) an amendment of the Constitution (c) a simple resolution of both Houses of Parliament (d) the prior consent of the legislature of the State concerned alone

Answer: (b) an amendment of the Constitution.

Following the Supreme Court's opinion on the Presidential reference under Article 143, the cession of the Berubari Union was implemented through the Constitution (Ninth Amendment) Act, 1960. Sovereignty permits cession, but not by executive act or ordinary resolution, which disposes of (a) and (c). Option (d) is wrong because State consent alone is not the constitutional route.

Core MCQ 11. Which of the following are devices of direct democracy that India has NOT adopted?

1. Referendum
2. Initiative
3. Recall
4. Plebiscite

Select the correct answer using the code given below. (a) 1 and 2 only (b) 1, 2 and 3 only (c) 1, 2, 3 and 4 (d) 3 and 4 only

Answer: (c) 1, 2, 3 and 4.

All four are devices of direct democracy, and India adopted representative parliamentary democracy instead of any of them. Every partial code is therefore incomplete.

Core MCQ 12. The term "Republic" in the Preamble implies which of the following?

1. The head of the State is elected and holds office for a fixed term.

2. Political sovereignty is vested in the people and not in a single individual such as a king.
3. There is no privileged class and all public offices are open to every citizen without discrimination.

Select the correct answer using the code given below. (a) 1 only (b) 1 and 2 only (c) 2 and 3 only (d) 1, 2 and 3

Answer: (d) 1, 2 and 3.

"Republic" carries all three implications. Answers that stop at the elective head miss the egalitarian half of the word, which connects to Article 18's abolition of titles and to Article 16(1) equality of opportunity in public employment.

Core MCQ 13. In the context of the Preamble, "distributive justice" refers to the combination of

- (a) social justice and economic justice (b) political justice and social justice (c) economic justice and political justice (d) social, economic and political justice taken together

Answer: (a) social justice and economic justice.

Distributive justice is the specific combination of the social and economic limbs. Option (d) describes the full triad of justice in the Preamble but is not what the term "distributive justice" denotes.

Core MCQ 14. Consider the following pairs of the equality dimension and its principal constitutional anchor.

1. Civic equality - Articles 14 to 18
2. Political equality - Articles 325 and 326
3. Economic equality - Article 39

Which of the pairs given above are correctly matched? (a) 1 and 3 only (b) 1, 2 and 3 (c) 2 and 3 only (d) 1 and 2 only

Answer: (b) 1, 2 and 3.

All three are correctly matched. Article 325 bars exclusion from electoral rolls on grounds of religion, race, caste or sex; Article 326 provides adult suffrage; and Article 39, a Directive Principle, carries the economic-equality content. Note that the Preamble secures equality of **status and opportunity**, not of outcome.

Core MCQ 15. Consider the following statements about fraternity in the Preamble.

1. Fraternity is to assure the dignity of the individual and the unity and integrity of the nation.
2. The word "integrity" was part of the Preamble as originally enacted.
3. The system of single citizenship is a means of promoting fraternity.

Which of the statements given above are correct? (a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Answer: (c) 1 and 3 only.

Statement 2 is false - "integrity" was added by the 42nd Amendment, 1976, whereas "unity" was original. Statements 1 and 3 are correct: fraternity assures two things, and single citizenship under Articles 5 to 11 is the constitutional means of promoting it.

Core MCQ 16. With reference to the amendability of the Preamble, which one of the following is correct?

- (a) The Preamble can be amended without any limitation, like any other provision (b) The Preamble cannot be amended because it is not a part of the Constitution (c) The Preamble has been amended three times since 1950 (d) The Preamble can be amended under Article 368, but its basic features cannot be altered

Answer: (d).

The question first arose in *Kesavananda Bharati* (1973), which held the Preamble to be a part of the Constitution and therefore amendable, subject to the basic features remaining untouched. Option (b) reflects the discarded *Berubari* premise; option (a) ignores the basic-structure limit; option (c) is factually wrong - the Preamble has been amended exactly once, in 1976.

Core MCQ 17. Consider the following statements.

1. In *Kesavananda Bharati* (1973) the Supreme Court held that the Preamble is a part of the Constitution.
2. In the *LIC of India* case (1995) the Supreme Court held that the Preamble is an integral part of the Constitution.

Which of the statements given above is/are correct? (a) Both 1 and 2 (b) 1 only (c) 2 only (d) Neither 1 nor 2

Answer: (a) Both 1 and 2.

Kesavananda reversed *Berubari* on the membership question and *LIC of India* reaffirmed and strengthened the position. Neither decision, however, made the Preamble justiciable - a distinction that a follow-up statement in an actual paper would exploit.

Core MCQ 18. In *Dr Balram Singh v. Union of India* (2024), the Supreme Court held with respect to the word "socialist" in the Preamble that it

(a) prohibits private entrepreneurship in sectors of strategic importance (b) denotes a commitment to be a welfare State and to equality of opportunity, without mandating any economic model (c) has become inoperative following the New Economic Policy of 1991 (d) obliges the State to nationalise the principal means of production

Answer: (b).

The Court held that neither the Constitution nor the Preamble mandates any economic model, that India has consistently embraced a mixed economy, and that the word does not restrict private entrepreneurship or the Article 19(1)(g) right. Options (d) and (a) invert the holding; option (c) is wrong because the challenge was dismissed and the word upheld.

Core MCQ 19. Which one of the following statements best reflects the Supreme Court's 2024 characterisation of Indian secularism?

(a) It permits the State to prefer the religion of the majority in matters of public policy (b) It is a Directive Principle and therefore not enforceable (c) It requires a strict wall of separation between the State and all religions (d) The State neither supports any religion nor penalises the profession and practice of any faith, and secularism is a facet of the right to equality

Answer: (d).

This is the operative formulation in *Dr Balram Singh* (2024), located in Articles 14, 15 and 16. Option (c) describes the American metaphor, not the Indian model. Option (a) is the opposite of equal respect. Option (b) is wrong because secularism is a basic feature, established in *Kesavananda* (1973) and *S. R. Bommai* (1994), not a Directive Principle.

Core MCQ 20. Consider the following pairs of description and author.

1. "Identity card of the Constitution" - N. A. Palkhivala
2. "Horoscope of our sovereign democratic republic" - K. M. Munshi
3. "Key-note" to the Constitution - Sir Ernest Barker
4. "Soul of the Constitution", "jewel set in the Constitution" - Pandit Thakur Das Bhargava

Which of the pairs given above are correctly matched? (a) 1 and 2 only (b) 2, 3 and 4 only (c) 1, 3 and 4 only (d) 1, 2, 3 and 4

Answer: (d) 1, 2, 3 and 4.

All four attributions are accurate. Barker additionally reproduced the Preamble at the beginning of his *Principles of Social and Political Theory* (1951). Misattribution - usually to Nehru or Ambedkar - is the standard error here.

Core MCQ 21. Which of the following are features of Indian secularism that distinguish it from the American model?

1. The State may regulate secular activity associated with religion and legislate for social welfare and reform.
2. Minority educational institutions enjoy affirmative constitutional protection.
3. The Constitution contains a directive to strive for a uniform civil code.

Select the correct answer using the code given below. (a) 1, 2 and 3 (b) 1 and 2 only (c) 2 and 3 only (d) 1 and 3 only

Answer: (a) 1, 2 and 3.

All three - Article 25(2), Article 30 and Article 44 respectively - are distinctively Indian and have no close American analogue. Together they show why the Indian model is described as positive secularism or principled distance rather than as separation.

Core MCQ 22. Consider the following statements about the socialist character of the Indian State.

1. The Congress party's Avadi session of 1955 resolved on a "socialistic pattern of society".

2. The Supreme Court in *D.S. Nakara* (1983) described Indian socialism as a blend of Marxism and Gandhism leaning heavily towards Gandhian socialism.

Which of the statements given above is/are correct? (a) 1 only (b) Both 1 and 2 (c) 2 only (d) Neither 1 nor 2

Answer: (b) Both 1 and 2.

The Avadi resolution of 1955 is the political antecedent of the constitutional word inserted in 1976, and *Nakara* supplies the judicial characterisation. Read together they establish that Indian socialism was always democratic and mixed-economy in design.

Core MCQ 23. The Preamble exerts legal force principally through which of the following routes?

1. Resolving ambiguity in the construction of enacted provisions.
2. Supplying the basic features that limit the amending power under Article 368.
3. Creating a directly enforceable cause of action in the constitutional courts.

Select the correct answer using the code given below. (a) 1 and 3 only (b) 2 and 3 only (c) 1 and 2 only (d) 1, 2 and 3

Answer: (c) 1 and 2 only.

Route 3 is excluded because the Preamble remains non-justiciable and creates no standalone claim. Routes 1 and 2 correspond respectively to *Berubari* (1960) and *Kesavananda* (1973), and both operate through other provisions rather than instead of them.

Core MCQ 24. Consider the following pairs of date and event.

1. 13 December 1946 - Objectives Resolution moved in the Constituent Assembly
2. 22 January 1947 - Objectives Resolution adopted
3. 26 November 1949 - date of adoption recorded in the Preamble
4. 26 January 1950 - date on which the Constitution came into force

Which of the pairs given above are correctly matched? (a) 1 and 2 only (b) 2, 3 and 4 only (c) 1, 3 and 4 only (d) 1, 2, 3 and 4

Answer: (d) 1, 2, 3 and 4.

All four are correct. The examinable discrimination is between the third and fourth: the Preamble records **26 November 1949**, the date of adoption, while **26 January 1950** is the date of commencement and does not appear in the Preamble.

Core MCQ 25

Question. In constitutional theory, the Preamble's claim to autochthony is best conveyed by:

- A. "We, the People of India ... adopt, enact and give to ourselves this Constitution"
- B. The continuation of all colonial laws without adaptation
- C. A referendum held in every province
- D. The Governor-General's assent to the Constitution

Answer: (a). The self-giving clause locates authority in the people rather than in an external grant. The Assembly was not elected by universal franchise and no referendum was held, but the Constitution created universal political membership and acquired democratic ratification through sustained electoral practice.

Core MCQ 26

Question. Which textual distinction in the Preamble is correctly stated?

- A. All four objectives are only promoted
- B. Fraternity is secured to citizens, while liberty is promoted among them
- C. Justice, liberty and equality are to be secured, while fraternity is to be promoted
- D. All four objectives are only secured

Answer: (c). The securing clause covers justice, liberty and equality; the Preamble then changes verb and asks that fraternity be promoted among citizens. The distinction reflects fraternity's horizontal, society-facing character.

Core MCQ 27

Question. The constitutional route by which the Berubari issue reached the Supreme Court was:

- A. A curative petition under Article 142
- B. An original inter-State suit under Article 131
- C. An election petition under Article 329
- D. A Presidential reference under Article 143

Answer: (d). The President sought the Court's advisory opinion under Article 143 on implementing the Indo-Pakistan agreement involving Berubari Union.

Core MCQ 28

Question. Which statement about India's United Nations membership is most accurate?

- A. It converted India into a dependent State
- B. It made the UN Charter superior to the Constitution
- C. It involves voluntarily assumed international obligations without placing a superior sovereign above India
- D. It prevents Parliament from legislating on treaties

Answer: (c). Treaty obligations constrain conduct through law and consent, but do not extinguish sovereignty. Article 253 enables Parliament to implement treaties.

Core MCQ 29

Question. Which set consists entirely of direct-democracy devices not adopted as general constitutional mechanisms in India?

- A. Ordinance, delegated legislation, money bill and joint sitting
- B. Question Hour, zero hour, adjournment motion and privilege motion
- C. Referendum, initiative, recall and plebiscite
- D. Universal franchise, judicial review, federalism and bicameralism

Answer: (c). India's Preamble proclaims popular sovereignty, but the Constitution operationalises it primarily through representative institutions rather than these general direct-democracy devices.

Core MCQ 30

Question. The Preamble's democratic commitment is best understood as:

- A. Representative parliamentary government plus the wider aspiration of social and economic democracy
- B. Elections alone
- C. Government without constitutional limits
- D. Direct election of every public office

Answer: (a). Political democracy is operationalised through representation and responsibility, while Ambedkar's trinity links it to social and economic democracy.

Core MCQ 31

Question. Which proposition follows most directly from the word "Republic"?

- A. Every election must be conducted by proportional representation
- B. The President must be directly elected
- C. Parliament is legally sovereign
- D. Public authority is non-hereditary and public office is not reserved to a privileged class

Answer: (d). Republicanism combines elective, fixed-term headship with the rejection of hereditary privilege. India's President is indirectly elected.

Core MCQ 32

Question. Fraternity in the Preamble expressly assures:

- A. Liberty of association and movement

- B. Dignity of the individual and unity and integrity of the Nation
- C. Social and economic justice
- D. Equality of outcome and opportunity

Answer: (b). These are the two express assurances. "Integrity" was inserted in 1976; "unity" and dignity were original.

Core MCQ 33

Question. After *Dr Balram Singh* (2024), the best statement of Preambular socialism is:

- A. A word made legally inoperative by the 1991 reforms
- B. A welfare and equality commitment that does not mandate one economic model
- C. A constitutional command to nationalise all productive property
- D. A prohibition on private entrepreneurship

Answer: (b). The Court treated socialism as a welfare-State and equality-of-opportunity commitment compatible with a mixed economy and democratic policy choice.

Core MCQ 34

Question. Which pair most directly establishes secularism as part of the basic structure?

- A. *Berubari Union* and *LIC of India*
- B. *D.S. Nakara* and *Excel Wear*
- C. *Kesavananda Bharati* and *S. R. Bommai*
- D. *G.B. Pant University* and *Property Owners Association*

Answer: (c). Kesavananda supplies the basic-structure foundation and S. R. Bommai authoritatively applies secularism as a basic constitutional feature.

Core MCQ 35

Question. The exact equality formulation in the Preamble is equality:

- A. Of result and outcome
- B. Before law and equal protection of laws
- C. Of income, wealth and consumption
- D. Of status and of opportunity

Answer: (d). Articles 14 and other provisions operationalise equality, but the Preamble's exact words are "status" and "opportunity".

Core MCQ 36

Question. Which is the most balanced assessment of "We, the People"?

- A. It has no relation to constitutional authority
- B. It declares popular sovereignty despite a constrained founding process later qualified by universal franchise and democratic acceptance
- C. It proves that the Assembly was directly elected by universal franchise
- D. It is void because no referendum was held

Answer: (b). A sound answer concedes the Assembly's indirect, limited-franchise origin while distinguishing process criticism from the Constitution's source claim and later democratic ratification.

Core MCQ 37

Question. Which combination states the present law correctly?

- A. The Preamble is part and has the same enforceability as Fundamental Rights
- B. The Preamble is not part of the Constitution but is directly enforceable
- C. The Preamble is part of the Constitution, non-justiciable, and not independently a source or limitation of power
- D. The Preamble alone authorises Parliament to legislate

Answer: (c). Membership, enforceability and source-of-power status are separate questions. Kesavananda and LIC settle membership; the two caveats remain.

Core MCQ 38

Question. Which statement about the Forty-second Amendment is correct?

- A. Its Preamble changes were repealed by the Forty-fourth Amendment
- B. It inserted Socialist, Secular and Integrity and remains the only amendment of the Preamble
- C. It inserted Justice, Liberty and Equality
- D. It replaced "Republic" with "Federation"

Answer: (b). The three insertions survive; the Forty-fourth Amendment did not alter the Preamble.

Core MCQ 39

Question. Which is the most accurate current-status statement for 21 August 2026?

- A. A nine-judge review replaced *Dr Balram Singh*
- B. The 25 November 2024 judgment remains the verified controlling public decision; no later official Supreme Court judgment or order altering it was located
- C. The Court left the validity of both words undecided
- D. The words Socialist and Secular were struck down in 2025

Answer: (b). Exact citation- and case-number searches located no later official Supreme Court decision changing the 2024 holding. This is a bounded search finding, not a claim that no filing could exist outside the public material located.

Core MCQ 40

Question. A Preamble-based interpretation is constitutionally legitimate when it:

- A. resolves ambiguity consistently with constitutional purpose or informs basic-structure review through operative provisions
- B. Overrides clear Article text
- C. Creates a new legislative field
- D. Supplies a standalone cause of action

Answer: (a). The Preamble guides interpretation and constitutional identity; it never replaces operative text.

8 remedial MCQs 41-48

These eight questions target only the errors that recur most often. Attempt them after checking the loops above.

Remedial MCQ 41. A candidate writes that "the Preamble has been amended twice - in 1976 and again by the 44th Amendment, 1978". The correct position is that the Preamble has been amended

(a) only once, by the 42nd Amendment, 1976 (b) twice, by the 42nd and 44th Amendments (c) three times, most recently in 1978 (d) never, because it is not a part of the Constitution

Answer: (a) only once, by the 42nd Amendment, 1976.

The 44th Amendment, 1978 undid several Emergency-era changes elsewhere in the Constitution but did not alter the Preamble; the words Socialist, Secular and Integrity survived, and the debate around them was recorded during the consideration of that Bill.

Remedial MCQ 42. A candidate writes that "the Preamble declares the ideal of a Welfare State". The correct position is that the welfare-State ideal is declared by

(a) the Preamble read with Article 19 (b) the Directive Principles of State Policy (c) the Fundamental Duties (d) the Seventh Schedule

Answer: (b) the Directive Principles of State Policy.

Article 38 directs the State to secure a social order for the promotion of the welfare of the people. The Preamble declares **objectives** - justice, liberty, equality and fraternity - not the welfare-State ideal as such. This exact discrimination was tested in Prelims 2020.

Remedial MCQ 43. A candidate writes that "because the Preamble is now a part of the Constitution, its clauses can be enforced in court like Fundamental Rights". The correct position is that

- (a) the Preamble is enforceable only against the Union and not against the States (b) the Preamble became enforceable after the LIC case, 1995 (c) the Preamble is enforceable only when read with a Directive Principle (d) the Preamble remains non-justiciable; membership and enforceability are different questions

Answer: (d).

Being a part of the Constitution settled the membership question alone. The two caveats survived every decision: the Preamble is neither a source of power nor a prohibition upon the legislature, and it is not enforceable in courts of law.

Remedial MCQ 44. A candidate writes that "Indian secularism means the State must keep entirely out of religion". The correct position is that Indian secularism

- (a) gives all religions the same status and support, while permitting regulation of secular activity associated with religion and reform of practices that obstruct equality (b) prohibits any State funding of religious or minority institutions (c) requires the removal of religious symbols from all public spaces (d) forbids legislation touching religious practice in any circumstance

Answer: (a).

The Indian model is positive secularism. Article 25(2) preserves the power to regulate secular activity and to legislate for social welfare and reform, and Articles 29 and 30 affirmatively protect minority institutions - all of which contradict a strict withdrawal model.

Remedial MCQ 45. A candidate writes that "the Preamble guarantees liberty of thought, expression, belief, faith, worship and association". The error is that

- (a) association is not one of the Preamble's liberties (b) worship is not one of the Preamble's liberties (c) belief is not one of the Preamble's liberties (d) expression is not one of the Preamble's liberties

Answer: (a) association is not one of the Preamble's liberties.

The Preamble lists exactly five. Freedom of association is guaranteed by Article 19(1)(c), an operative provision, and importing it into the Preamble is a frequent and easily penalised slip.

Remedial MCQ 46. A candidate writes that "the Preamble was the first part of the Constitution to be adopted, as its opening statement of intent". The correct position is that the Preamble was

- (a) enacted after the rest of the Constitution, so that it would conform to the text already adopted (b) adopted by the Drafting Committee rather than by the full Assembly (c) never formally voted upon by the Constituent Assembly (d) adopted along with Article 1 at the very start of the drafting process

Answer: (a).

The Assembly enacted the Preamble last, and the motion put and carried was "The question is that Preamble stands part of the Constitution". Option (c) is contradicted by that very motion, and option (b) misdescribes the Drafting Committee's role.

Remedial MCQ 47. A candidate writes that "the 2024 Supreme Court decision struck down the insertion of 'socialist' and 'secular'". The correct position is that the Court

- (a) struck down "socialist" but upheld "secular" (b) dismissed the petitions and upheld both words, holding that Article 368 extends to the Preamble (c) referred the matter to a nine-judge bench for reconsideration (d) declined to decide the question on the ground of maintainability alone

Answer: (b).

In *Dr Balram Singh v. Union of India*, decided on 25 November 2024, the Court held that the amending power extends to the Preamble, upheld both words on the merits, noted 44 years of acquiescence and widespread acceptance, and dismissed the writ petitions without issuing notice.

Remedial MCQ 48. A candidate writes that "the Preamble's ideals of Justice, Liberty, Equality and Fraternity were all drawn from the French Revolution". The correct position is that

- (a) all four were drawn from the Russian Revolution of 1917 (b) all four were drawn from the American Declaration of Independence (c) Justice came from the Russian Revolution of 1917, while Liberty, Equality and Fraternity came from the French Revolution (d) Justice came from the French Revolution and the other three from the Russian Revolution

Answer: (c).

The split is one-to-three, and it runs the opposite way to option (d). Keep the two sources in separate mental boxes, because a single Prelims question can be built on nothing more than this discrimination.

PYQS AND ANSWER PRACTICE

Verified PYQ provenance and count

Corpus	Items retained	Provenance / ownership status
Prelims GS-I	5	2020 Q16 is the direct Preamble owner; 2020 Q7/Q8/Q12 and 2021 Q93 are verified adjacent applications retained from the complete owner
Mains GS-II	4	2024 Q15 and 2025 Q11 are locally official-paper verified shared applications; 2021 Q1 and 2019 Q5 are audited-routing sourced
Mains GS-IV	1	2025 Q1(b), locally official-paper verified, retained as a bounded constitutional-morality application
Total	10	No PYQ is invented; objective keys are never described as official where the repository lacks an official key

PYQ 1. Prelims 2020, GS Paper I, Question 16 - verbatim-verified

The Preamble to the Constitution of India is (a) a part of the Constitution but has no legal effect (b) not a part of the Constitution and has no legal effect either (c) a part of the Constitution and has the same legal effect as any other part (d) a part of the Constitution but has no legal effect independently of other parts

ANALYSIS: INFERRED ANSWER - NOT OFFICIALLY VERIFIED. The official UPSC answer key for the 2020 Prelims is not held in this repository. The solution below is reasoned from the constitutional position and is offered with **high confidence**.

Answer: (d) a part of the Constitution but has no legal effect independently of other parts.

Elimination logic. Option (b) is eliminated first: *Kesavananda Bharati* (1973) settled that the Preamble **is** a part of the Constitution, and *LIC of India* (1995) called it an integral part, so any option denying membership is wrong. That leaves (a), (c) and (d), all of which concede membership. Option (c) is eliminated next: if the Preamble had the same legal effect as any other part it would be justiciable, but it is settled that the Preamble is non-justiciable and is neither a source of power nor a prohibition upon the legislature. The contest is therefore between (a) and (d), which differ by one crucial qualifier. Option (a) says the Preamble has **no legal effect at all**; that is too strong, because the Preamble does operate - it resolves ambiguity in other provisions and it supplies basic features. Option (d) captures exactly that position: the Preamble has legal effect, but **not independently of other parts**. Confidence: high, because (d) is the only option consistent with all three settled propositions simultaneously.

PYQ 2. Prelims 2021, GS Paper I, Question 93 - verbatim-verified

What was the exact constitutional status of India on 26th January, 1950? (a) A Democratic Republic (b) A Sovereign Democratic Republic (c) A Sovereign Secular Democratic Republic (d) Sovereign Socialist Secular Democratic Republic

ANALYSIS: INFERRED ANSWER - NOT OFFICIALLY VERIFIED. No official key for the 2021 Prelims is held locally. Confidence: **high**.

Answer: (b) A Sovereign Democratic Republic.

Elimination logic. The word "exact" is the instruction: the question is asking what the Preamble actually said on that date, not what it says today. On 26 January 1950 the Preamble read "SOVEREIGN DEMOCRATIC REPUBLIC". The words **SOCIALIST** and **SECULAR** were inserted only by the **42nd Amendment, 1976**. Option (d) is therefore the present-day text, not the 1950 text, and is eliminated. Option (c) is eliminated because it imports "Secular", also a 1976 insertion. Option (a) is eliminated because it drops "Sovereign", which was in the original text and is in fact the

very status India acquired on that date, having been a dominion from 15 August 1947. That leaves (b), which reproduces the 1950 wording exactly.

PYQ 3. Prelims 2020, GS Paper I, Question 8 - verbatim-verified stem; option labels reconstructed

Other than the Fundamental Rights, which of the following parts of the Constitution of India reflect / reflects the principles and provisions of the Universal Declaration of Human Rights (1948)?

1. Preamble
2. Directive Principles of State Policy
3. Fundamental Duties

Select the correct answer using the code given below: (a) 1 and 2 only (b) 2 only (c) 1 and 3 only (d) 1, 2 and 3

ANALYSIS: INFERRED ANSWER - NOT OFFICIALLY VERIFIED. The local scan renders the option codes imperfectly; the numbered statements are verbatim and the codes follow the standard UPSC four-option format. Confidence: **high** on the answer, **medium** on the exact printed wording of the codes.

Answer: (d) 1, 2 and 3.

Elimination logic. Test each statement independently. The **Preamble** proclaims justice, liberty, equality and the dignity of the individual, which are the organising values of the UDHR - included. The **Directive Principles** carry the socio-economic rights of the UDHR (livelihood, work, education, living wage) in non-justiciable form - included. The **Fundamental Duties** correspond to the UDHR's proposition that everyone has duties to the community in which alone the free and full development of personality is possible - included. Since all three are correct, every "only" code fails, and the all-inclusive code is the answer. Note the stem's exclusion clause: it deliberately removes Fundamental Rights so that candidates cannot take the easy route.

PYQ 4. Prelims 2020, GS Paper I, Question 12 - verbatim-verified

Which part of the Constitution of India declares the ideal of Welfare State? (a) Directive Principles of State Policy (b) Fundamental Rights (c) Preamble (d) Seventh Schedule

ANALYSIS: INFERRED ANSWER - NOT OFFICIALLY VERIFIED. Confidence: **high**.

Answer: (a) Directive Principles of State Policy.

Elimination logic. This is a Preamble-adjacent trap and the tempting wrong answer is (c). The Preamble declares **objectives** - justice, liberty, equality, fraternity - but it nowhere declares the ideal of a welfare State as such. It is **Part IV**, particularly Article 38 (State to secure a social order for the promotion of welfare of the people) read with Articles 39, 41, 42 and 43, that declares that ideal. Option (b) fails because Fundamental Rights are largely negative restraints on State power rather than a declaration of welfare obligations. Option (d) fails because the Seventh Schedule is a distribution of legislative competence and declares no ideal at all. Learn the pairing: **welfare State goes to the DPSP; objectives go to the Preamble**.

PYQ 5. Prelims 2020, GS Paper I, Question 7 - verbatim-verified

A constitutional government by definition is a (a) government by legislature (b) popular government (c) multi-party government (d) limited government

ANALYSIS: INFERRED ANSWER - NOT OFFICIALLY VERIFIED. The local scan drops the labels on the last two options; the order printed is as reproduced. Confidence: **high** on the answer. The same proposition was tested again in **Prelims 2021, Question 94**, where the correct description was "a government limited by the terms of the Constitution".

Answer: (d) limited government.

Elimination logic. "By definition" signals that the question is asking for the defining feature, not a common accompaniment. Constitutionalism means **limited government** - power exercised within constitutional restraints. Option (a) is wrong because government by the legislature describes a parliamentary arrangement, not constitutionalism, and an unlimited legislature would be its antithesis. Option (b) is wrong because a popular

government can still be unlimited; majoritarian authority without restraint is not constitutional government. Option (c) is wrong because the number of parties is a feature of the party system, and one-party or two-party systems can be perfectly constitutional. This question belongs to the Preamble file because the Preamble's declared objectives are precisely the limits that make Indian government constitutional.

PYQ 6. Mains 2024, GS Paper II, Question 15 (15 marks, 250 words) - verbatim-verified

"Discuss India as a secular state and compare with the secular principles of the US constitution." (*The spelling of "constitution" is as printed in the question paper.*)

Model solution

Secularism in India is not the absence of the State from religion but the **equal presence of the State towards all religions**. The Preamble's word "secular", inserted by the 42nd Amendment, 1976, made explicit what the Constitution already carried: as the Supreme Court noted as early as 1974, although the words "secular State" were not expressly mentioned, the makers plainly wanted such a State, and Articles 25 to 28 were included for that purpose. In *Dr Balram Singh v. Union of India* (25 November 2024) the Court restated the operative test - the State **neither supports any religion nor penalises the profession and practice of any faith** - and located it in Articles 14, 15 and 16, describing secularism as **a facet of the right to equality**.

Four structural features define the Indian model. First, there is **no State religion**, yet all religions enjoy the same status and support. Second, Articles 25 to 28 guarantee freedom of religion while Article 25(2) preserves the State's power to regulate **secular activity associated with religion** and to legislate for **social welfare and reform**. Third, Articles 29 and 30 affirmatively protect minority culture and minority educational institutions. Fourth, Article 44 permits the State to strive for a uniform civil code. Secularism is a **basic feature** - *Kesavananda Bharati* (1973), and *S. R. Bommai* (1994) by nine judges - with its scope elaborated in *R. C. Poudyal* (1993) and *M. Ismail Faruqui* (1994).

The American model rests on the First Amendment's **establishment and free exercise clauses**, and its governing metaphor is the **wall of separation**. Both systems share a floor: no State religion and protected freedom of conscience. They diverge on the State's competence to enter religion in order to secure equality. India permits and even contemplates such entry, because its founding anxiety was that religious practice itself entrenched social hierarchy. The American design presumes distance, because its founding anxiety was State capture of religion.

The Indian model is therefore better described as **principled distance** than as separation. Its strength is that equality can reach inside religious practice; its risk is that the same power requires State discretion and can be politically contested. Judged against its own purpose, however, Indian secularism is not a weaker version of the American principle but a different technique for reaching the same floor.

Why this earns marks: the answer defines before it compares; it fixes the Indian model with dated textual and judicial evidence (1976 insertion, the 1974 observation, *Balram Singh* 2024, *Bommai* 1994) rather than with adjectives; it structures the comparison as shared floor, structural divergence and explanation of the divergence, which is the only comparison structure that avoids a two-column listing; and it closes with a graded verdict that names both the strength and the risk instead of declaring one system superior.

PYQ 7. Mains 2025, GS Paper II, Question 11 (250 words) - verbatim-verified

"Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike...." In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India.

Model solution

Constitutional morality is the obligation to exercise public power in fidelity to the Constitution's **values and processes**, and not merely within the literal permission of its text. Its normative content is drawn from the Preamble - justice, liberty, equality and fraternity assuring **the dignity of the individual** - which K. M. Munshi glossed as the recognition that the personality of every individual is sacred. B. R. Ambedkar's address of **25 November 1949** supplies its operative logic: liberty, equality and fraternity must be treated as a **union of trinity**, and to divorce one from the others defeats the purpose of democracy. Constitutional morality is thus a **cultivated** disposition, not a natural sentiment.

It has four working facets: fidelity to constitutional processes and institutional roles; the primacy of constitutional values over majoritarian sentiment; **self-restraint** by holders of high office; and dignity and inclusion as the test of

legitimate State action.

Applied to the judiciary, the two values in tension are independence and accountability. **Independence** protects the values limb - a judge who can be removed or pressured cannot enforce equality against the government of the day; this is why removal requires the exacting parliamentary process, why salaries are charged on the Consolidated Fund, and why the judiciary's power of review is treated as a basic feature. **Accountability** protects the process and self-restraint limbs - independence is a trust held for the Constitution, not a personal immunity, and it is discharged through reasoned judgments delivered in open court, through in-house standards of conduct, through timely disposal, and through transparency in the exercise of administrative functions such as appointments and case allocation.

Constitutional morality is the fulcrum because it refuses to let either value be asserted alone. An independence claim that resists all scrutiny converts a constitutional trust into a personal privilege; an accountability claim routed through the executive converts scrutiny into control. The reconciliation the doctrine requires is **internal and value-driven**: accountability mechanisms designed and owned by the judiciary itself, tested by whether they enlarge public confidence without exposing adjudication to political pressure.

The check therefore runs both ways, and on citizens too: obedience to judicial orders and restraint in public attacks on courts are themselves duties of constitutional morality. Its limitation must be conceded - the concept is judicially articulated rather than textually defined, and it can be invoked loosely. The safeguard is to derive it, as here, from identified Preamble values rather than from personal moral preference.

Why this earns marks: it defines the concept by **derivation** (Preamble values plus Ambedkar's trinity) rather than by assertion, which immediately answers the "explain the concept" limb with authority; it then converts the abstract idea into **four named facets** and maps each side of the judicial tension onto specific facets, so the "application" limb is genuinely analytical; it uses concrete institutional evidence (removal process, charged salaries, open-court reasoning, case allocation) instead of generalities; it answers the quotation's own words by showing the check operating on citizens as well; and it closes with an honest qualification about the doctrine's indeterminacy plus the safeguard, which is exactly the calibrated ending examiners reward.

PYQ 8. Mains 2025, GS Paper IV, Question 1(b) (150 words) - verbatim-verified

"Constitutional morality is not a natural sentiment but a product of civil education and adherence of the rule of law." Examine the significance of constitutional morality for public servant highlighting the role in promoting good governance and ensuring accountability in public administration. (*Spellings as printed.*)

Model solution

The proposition is Ambedkar's: constitutional morality has to be **cultivated**, because a society's inherited social morality may be hierarchical while the Constitution's morality is egalitarian. For a public servant this has three consequences.

First, it fixes the **source of official values**. The servant's compass is the Preamble - justice, liberty, equality, fraternity and the dignity of the individual - not personal belief, community sentiment or the preference of the political executive of the day. This is what makes impartiality a constitutional duty rather than a personal virtue.

Second, it converts good governance from an efficiency goal into a **constitutional obligation**. Non-arbitrariness in decision-making, reasoned orders, equal access to services, and priority to the weakest claimant are all discharges of the Preamble's equality and justice objectives, and they are enforceable through Article 14 review.

Third, it grounds **accountability**. A servant who acts on record, gives reasons, and accepts audit, RTI scrutiny and grievance redressal is treating authority as a trust. Constitutional morality supplies the standard against which even lawful acts are judged: an act may be within power and still be an abuse of constitutional trust.

Because it is cultivated, it must be built - through training that teaches constitutional reasoning rather than only rules, through institutional practice that rewards restraint, and through leadership that models it. Its limit is honesty: constitutional morality does not licence a servant to substitute personal moral judgment for lawful policy; it requires fidelity to constitutional values **within** the rule of law.

Why this earns marks: it engages the quotation's exact claim - "not natural but cultivated" - and explains **why** cultivation is necessary (the gap between social morality and constitutional morality), which most answers omit; it structures the significance into three distinct administrative consequences rather than listing virtues; it links each consequence to an operative anchor (Preamble values, Article 14 non-arbitrariness, record and reasons, RTI); it answers the "how" implicit in a cultivated disposition through training, institutional design and leadership; and it ends with a limitation that prevents the ethical concept from being read as a licence, which is the standard GS-IV discriminator.

PYQ 9. Mains 2021, GS Paper II, Question 1 (10 marks, 150 words) - routing-ledger sourced

Examine the doctrine of Constitutional Morality and its essential facets.

Model solution

Constitutional morality is fidelity to the **values and processes** of the Constitution in the exercise of public power. It is derived, not free-standing: its content comes from the Preamble's objectives - justice, liberty, equality and fraternity assuring the dignity of the individual - and its logic from Ambedkar's warning of **25 November 1949** that liberty, equality and fraternity form a **union of trinity** that cannot be divided.

Its essential facets are four. **Process fidelity** requires that power be exercised through the constitutionally assigned institution and procedure, not by convenient shortcut. **Value primacy** requires that constitutional guarantees prevail over majoritarian sentiment, which is why rights do not depend on popularity. **Self-restraint** requires holders of high office to observe limits that no court will enforce, because the Constitution assumes forbearance in the spaces it leaves open. **Dignity and inclusion** supply the test of outcomes: State action is measured by whether it enlarges the individual's dignity.

Its value is that it disciplines lawful power. Its limit is that, being judicially articulated rather than textually defined, it can be invoked expansively; the discipline is to anchor it, in every use, to identified constitutional text.

Why this earns marks: a 10-marker rewards compression, and this answer spends its first block on derivation, its middle on **four named and defined facets** (the word "facets" in the question is a structural instruction), and its last on a two-sided evaluation. It cites Ambedkar with a date, keeps every facet tied to a constitutional function, and never drifts into generic ethics vocabulary.

PYQ 10. Mains 2019, GS Paper II, Question 5 (10 marks, 150 words) - routing-ledger sourced

What can India and its citizens learn from the French model of secularism, and what can France learn from India's approach? (Sourced from the repository's audited PYQ routing files rather than from a locally held 2019 paper PDF; the Preamble content below is independently verified.)

Model solution

The two models answer different founding anxieties. **French laïcité** grew from a fear that religion would capture the State, and its technique is the removal of religion from the public sphere. **Indian secularism** grew from a fear that religious practice itself entrenched social hierarchy, and its technique is equal respect with a retained power of reform. India's Preamble word "secular", inserted in 1976, is anchored in Articles 14 to 16 equality, Articles 25 to 28 freedom of religion, Articles 29 and 30 minority protection, and the Article 44 directive; in *Dr Balram Singh* (2024) the Supreme Court described secularism as **a facet of the right to equality**, the State neither supporting nor penalising any faith.

India can learn from France the value of a **clear rule of institutional neutrality**, which reduces the discretion that equal-support arrangements inevitably create and insulates public institutions from competitive religious claims.

France can learn from India that **visibility is not establishment**. India's protection of minority educational institutions under Article 30 and its accommodation of religious identity in public life show that pluralism can be managed by recognition rather than by erasure, and that an assimilationist rule can itself become a source of exclusion.

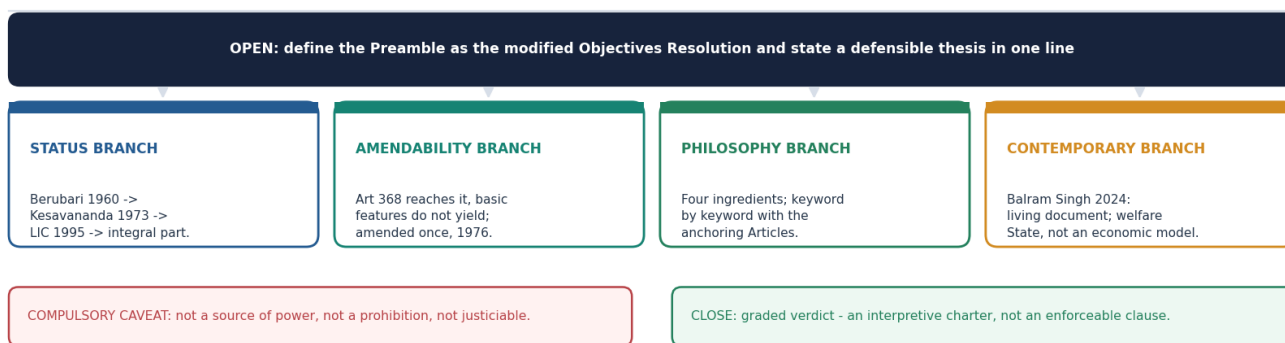
The shared lesson is that secularism is a means to equal citizenship; each model should be judged by whether it delivers that end.

Why this earns marks: it refuses the symmetrical listing trap by first explaining **why** the two models differ (different founding anxieties), which turns a comparison into an argument; it gives each side a single, concrete, defensible lesson rather than a vague exchange of virtues; it carries verified Indian constitutional anchors including a dated 2024 holding; and it closes by supplying a common evaluative standard, which is what a "what can each learn" directive is really asking for.

Six original solved Mains models

GS-II answer spine for any Preamble question

Choose the branch by directive; the caveat line and the graded verdict are compulsory in every branch.



GS-II answer spine for any Preamble question

Use the spine to choose the branch, then write to the mark scale below.

Original Mains Model 1. The Preamble is a part of the Constitution, yet it confers no power and bars none. Examine. (10 marks, 150 words)

Model solution

The apparent contradiction dissolves once **membership** is separated from **operativeness**. On membership the law is settled: *Berubari Union* (1960) treated the Preamble as a key to the makers' minds but not a part of the Constitution; *Kesavananda Bharati* (1973) reversed that and held it to be a part; *LIC of India* (1995) called it an integral part.

On operativeness the position never changed. The Preamble is **neither a source of power to the legislature nor a prohibition upon it**, and it is **non-justiciable**. Legislative competence continues to flow from Articles 245 and 246 with the Seventh Schedule, and no statute can be sustained or struck down on Preamble values alone.

What the Preamble does instead is exert force **through** other provisions: it resolves ambiguity in favour of the reading that advances its values, and it supplies the basic features that limit Article 368.

It is therefore best described as an interpretive charter with constitutional force, not an enforceable clause.

Why this earns marks: the answer names the analytical distinction in its first line, which is what "examine" demands; it evidences the membership limb with three dated cases in sequence; it states the two caveats in the examiner's own vocabulary and immediately supplies the correct alternative source of legislative power, which shows the candidate knows where power actually comes from; it then answers the unasked but decisive question - if it confers nothing, what does it do - through the two named routes; and it closes with a graded verdict rather than a slogan.

Original Mains Model 2. "The Preamble was enacted last so that it might conform to the Constitution." Discuss the constitutional significance of this sequence. (10 marks, 150 words)

Model solution

The Constituent Assembly reversed the natural drafting order deliberately. Having adopted the Objectives Resolution moved by Nehru on **13 December 1946** and passed on **22 January 1947**, it postponed the Preamble to the end so that the Preamble would conform to the Constitution already accepted, and put the motion "The question is that Preamble stands part of the Constitution".

Three consequences follow. First, the Preamble is **not an aspirational preface** but a retrospective summary of what was actually enacted, which is precisely why courts treat it as reliable evidence of the makers' intention - the *Berubari* proposition that it opens the minds of the makers depends on this.

Second, it explains the **fit between Preamble words and operative provisions**: sovereignty in Article 1, democracy in Articles 324 to 326, republican form in Articles 52 to 62, justice across Parts III and IV.

Third, it strengthens the *Kesavananda* reasoning that the edifice of the Constitution rests on the basic elements mentioned in the Preamble.

The sequence, in short, is what converts a declaration into evidence.

Why this earns marks: most candidates know the sequencing fact and stop there; this answer treats the fact as a premise and derives **three distinct constitutional consequences** from it, which is exactly what "discuss the significance" requires. Each consequence is tied to named authority - *Berubari*, the operative Articles, *Kesavananda* - so the answer argues rather than narrates, and the closing line compresses the whole argument into one memorable proposition.

Original Mains Model 3. "Article 368 reaches the Preamble, but the basic features declared in the Preamble do not yield to Article 368." Critically examine. (15 marks, 250 words)

Model solution

The statement compresses the entire law on amendability into two halves, and both halves must be defended.

The first half. The question whether the Preamble could be amended arose for the first time in *Kesavananda Bharati* (1973). It was argued that it could not be, because the Preamble was not a part of the Constitution. The Court rejected the premise, held the Preamble to be a part, and therefore held it amendable under Article 368. The proposition has since been applied: the **42nd Amendment, 1976** inserted Socialist, Secular and Integrity, and that amendment was held valid. In *Dr Balram Singh v. Union of India* (25 November 2024) the Supreme Court restated it directly - the power under Article 368 **extends to the Preamble**, the recorded date of adoption of 26 November 1949 does not curtail that power, and the Constitution is a **living document**. The Court added that the contrary argument, if accepted, would invalidate every amendment ever made.

The second half. The same decision that opened the Preamble to amendment closed it against destruction. *Kesavananda* reasoned that the edifice of the Constitution is **based upon the basic elements mentioned in the Preamble**; if any of those elements are removed, the structure will not survive, and it will not be the same Constitution, or it cannot maintain its identity. Sovereignty, the democratic character, the republican form, secularism and the rule of law are therefore beyond the amending power - secularism expressly so, per *S. R. Bommai* (1994).

Critical assessment. The formulation is coherent but not self-executing, because the boundary between adding to the Preamble and altering a basic element is drawn by the Court, not by the text. That is the standing objection to basic-structure review: it is counter-majoritarian and its content is judicially declared. The reply is that the alternative - an unlimited amending power - would make the Preamble's declared identity revocable by a transient two-thirds majority, which is precisely the outcome M. Hidayatullah anticipated when he said that nothing but a revolution can alter the Preamble.

The statement is therefore accurate, and the tension it contains is a designed feature rather than a defect.

Why this earns marks: it treats the quotation as a **two-part proposition** and defends each part separately with dated authority, which is the correct response to "critically examine" of a compound statement; it supplies the *Kesavananda* identity reasoning in the Court's own terms rather than paraphrasing it away; the "critical" limb is genuinely critical, naming the counter-majoritarian objection instead of gesturing at it, and then answering it with a reasoned reply and an apt quotation; and the verdict resolves the tension rather than restating it.

Original Mains Model 4. The word "socialist" in the Preamble fixes ends, not means. Examine this proposition in the light of judicial pronouncements and India's economic experience. (15 marks, 250 words)

Model solution

The proposition is sound, and its soundness has now been judicially confirmed.

The ends. "Socialist" was inserted by the 42nd Amendment, 1976, though socialist content was already implicit in Part IV - Articles 38, 39(b) and 39(c), 41 and 43. The judicially declared aim, in *G.B. Pant University* (2000), is to **end poverty, ignorance, disease and inequality of opportunity**. In *Dr Balram Singh* (2024) the Supreme Court held that the word denotes a commitment to be a **welfare State** and to **equality of opportunity**. These are ends, and they are non-negotiable.

The means. The same decision held that neither the Constitution nor the Preamble mandates any economic model, left or right; that India has consistently embraced a **mixed economy**; and that the word does not restrict private entrepreneurship or the Article 19(1)(g) right. This confirms the character of Indian socialism as **democratic socialism** - described in *D.S. Nakara* (1983) as a blend of Marxism and Gandhism leaning heavily towards Gandhian socialism - as against communistic or State socialism, which the Constitution never adopted.

The economic experience. The trajectory bears this out. The Avadi resolution of 1955 committed the ruling party to a socialistic pattern of society; the **New Economic Policy of 1991** diluted the socialist credentials of the State in practice. Judicial emphasis moved with it: *Excel Wear* (1978) observed that the word might incline courts towards nationalisation while still recognising private ownership, whereas the nine-judge decision in *Property Owners Association* (2024) clarified that an elected government may adopt its own structure for economic governance.

Qualification. The proposition should not be pressed too far. Ends without means are not costless: if welfare and equality of opportunity are constitutional commitments, a policy that demonstrably abandons them is open to challenge through Articles 14 and 21, even though no particular model is prescribed. The word therefore constrains outcomes at the margin while leaving instruments to democratic choice - which is exactly what it should do in a constitutional democracy.

Why this earns marks: it adopts the ends-means frame as the answer's own architecture, so the structure itself argues the proposition; each limb carries dated, named judicial evidence rather than assertion; the economic-experience section supplies chronology **and** the corresponding shift in judicial emphasis, which is the analytical value-add; and the qualification prevents the answer from over-claiming, showing the candidate understands that "no mandated model" is not the same as "no constitutional constraint".

Original Mains Model 5. "The Preamble is an interpretive charter rather than an enforceable clause; yet it remains the yardstick by which the worth of the Constitution is measured." Critically analyse. (20 marks, 250 words)

Model solution

The statement asserts two things - a **legal** claim about force and a **normative** claim about function - and both survive scrutiny, though for different reasons.

The legal claim. The Preamble is a part of the Constitution: *Kesavananda Bharati* (1973), reaffirmed in *LIC of India* (1995), reversing *Berubari Union* (1960). Membership, however, did not confer operativeness. The Preamble is **neither a source of power to the legislature nor a prohibition upon it**, and it is **non-justiciable**. Its force runs along two identified routes only. First, construction: *Berubari* held that it shows the general purposes behind the several provisions and is a key to open the minds of the makers, so an ambiguous provision is read in the sense that advances Preamble values. Second, basic-feature review: *Kesavananda* held that the edifice of the Constitution rests on the basic elements mentioned in the Preamble, and those elements limit Article 368 - secularism being one, per *S. R. Bommai* (1994). Both routes operate through other provisions. "Interpretive charter" is therefore exact.

The normative claim. Pandit Thakur Das Bhargava called the Preamble a "proper yardstick with which one can measure the worth of the Constitution"; K. M. Munshi called it the horoscope of the sovereign democratic republic; Sir Ernest Barker called it the key-note. The claim is not sentimental. Because the Preamble states the ends the Constitution exists to secure, every law, policy and institutional practice can be evaluated against a standard the Constitution itself supplies. *Dr Balram Singh* (2024) illustrates the point: the Court measured a challenge to the 1976 words against the Preamble's own logic and the Constitution's character as a **living document**.

The critical edge. Two objections deserve an answer. First, a yardstick that no one can enforce is a weak yardstick; India's continuing deficits in social and economic democracy - precisely what Ambedkar warned of on **25 November 1949** when he described liberty, equality and fraternity as a **union of trinity** - are evidence of the gap between declaration and delivery. Second, an unenforceable standard invites selective invocation, since any position can claim

Preamble support. The reply to the first is that unfulfilment is a critique of performance, not of text, and the shortfall is visible only because the standard exists. The reply to the second is discipline: the Preamble is legitimately invoked only through the two routes, never as a free-standing argument.

The statement is therefore accurate on both limbs, and the tension between them is the source of the Preamble's authority rather than a weakness in it.

Why this earns marks: it identifies that the quotation contains **two separable claims** and tests each on its own terms, which is the highest-value move available in a "critically analyse" question; the legal limb is fully evidenced and names the two routes precisely, avoiding the common error of implying enforceability; the normative limb uses the founders' and scholars' formulations as **argument** and supports it with a 2024 illustration; the critical section raises two genuine objections and answers both, rather than raising one and abandoning it; and the conclusion converts the tension into an explanation of authority instead of leaving it unresolved.

Original Mains Model 6. "Indian secularism is a facet of the right to equality rather than a wall of separation." Critically examine with reference to constitutional provisions and judicial doctrine. (20 marks, 250 words)

Model solution

The proposition states the Indian position accurately, and its accuracy is best shown by locating secularism in the equality code rather than in a doctrine of separation.

Textual location. "Secular" was inserted by the 42nd Amendment, 1976, but as the Supreme Court observed as early as 1974, the makers plainly intended a secular State, which is why Articles 25 to 28 were included. The operative anchors are **Articles 14, 15 and 16** (equality, non-discrimination, equal opportunity), **Articles 25 to 28** (freedom of religion), **Articles 29 and 30** (minority culture and educational institutions) and the **Article 44** directive. In *Dr Balram Singh v. Union of India* (25 November 2024) the Court stated the operative test - the State **neither supports any religion nor penalises the profession and practice of any faith** - and expressly described secularism as **a facet of the right to equality**.

Doctrinal status. Secularism is a **basic feature**: *Kesavananda Bharati* (1973) and *S. R. Bommai* (1994) by nine judges, with scope elaborated in *R. C. Poudyal* (1993) and *M. Ismail Faruqui* (1994), including the proposition that secularism does not prevent the elimination of practices that impede development and equality. That last proposition is decisive: a wall-of-separation model could not authorise the State to reform religious practice, yet Indian doctrine expressly does, and Article 25(2)(b) contemplates it.

Contrast. The American First Amendment combines non-establishment with free exercise, and its governing metaphor is separation. Both systems share a floor - no State religion, protected freedom of conscience - but they diverge on the State's competence to enter religion in order to secure equality. The divergence is explained by different founding anxieties: American constitutionalism feared State capture of religion; Indian constitutionalism feared that religious practice would entrench social hierarchy.

Critical assessment. The equality framing carries a real cost. It requires the State to make judgements about which practices obstruct equality, and that discretion can be exercised unevenly or for political advantage; the "positive support to all religions" formulation can also slide into competitive accommodation. The safeguards are internal to the framing itself: because secularism is a facet of equality, State action in religious matters is testable under Articles 14 and 15, and because it is a basic feature it cannot be amended away.

The proposition is therefore correct as description and defensible as design, provided the equality anchor is treated as a constraint on the State and not merely as a licence.

Why this earns marks: it converts the quotation into a **locatable constitutional claim** and then proves the claim from text, from a dated 2024 holding and from basic-structure doctrine; the *Faruqui* proposition is deployed as the decisive discriminator against the separation model, which is a genuinely analytical use of case law; the contrast section explains **why** the models differ instead of listing differences; the critical assessment names the real cost of the Indian design and then identifies the internal safeguards, which is far stronger than a generic "challenges remain"; and the verdict qualifies the proposition without abandoning it.